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THE COLLECTION OF STATISTICS ACT, 2008

ACT No. 7 OF 2009

[7*th January*, 2009.]

An Act to facilitate the collection of statistics on economic, demographic, social, scientific and environmental aspects, and for matters connected therewith or incidental thereto.

BE it enacted by Parliament in the Fifty-ninth Year of the Republic of India as follows:–

CHAPTER I

PRELIMINARY

1. Short title, extent and commencement.—(*1*) This Act may be called the Collection of Statistics Act, 2008.

[1][(*2*) It extends to the whole of India:

[2]* * * * *]

(*3*) It shall come into force on such date[3] as the Central Government may, by notification in the Official Gazette, appoint.

2. Definitions.—In this Act, unless the context otherwise requires,—

(*a*) "agency" includes a person or persons engaged by the appropriate Government, directly or by outsourcing, for collection of statistics;

(*b*) "appropriate Government" means–

(*i*) any Ministry or Department in the Central Government; or

(*ii*) any Ministry or Department in a State Government or Union territory Administration; or

(*iii*) any local government that is to say, Panchayats or Municipalities, as the case may be,

in relation to the collection of statistics under a direction issued by it under section 3;

(*c*) "informant" means any person, who supplies or is required to supply statistical information and includes a owner or occupier or person in-charge or his authorised representative in respect of persons or a firm registered under the Indian Partnership Act, 1932 (9 of 1932) or a co-operative society registered under any Co-operative Societies Act or a company registered under the Companies Act, 1956 (1 of 1956) or a society registered under the Societies Registration Act, 1860 (21 of 1860) or any association recognised or registered under any law for the time being in force;

(*d*) "information schedule" means any book, document, form, card, tape, disc or any storage media on which information required is entered or recorded or is required to be entered or recorded for statistical purposes under this Act;

[4][(*da*) "nodal officer" means the officer designated as a nodal officer under sub-section (*1*) of section 3A;].

(*e*) "prescribed" means prescribed by rules made under this Act;

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1. Subs. by Act 21 of 2017, s. 2, for sub-section (*2*) (w.e.f. 3-10-2017).
2. The proviso omitted by the Jammu and Kashmir Reorganization (Adaptation of Central Laws) Order, 2020, *vide* notification No. S.O. 1123(E) dated (18-3-2020) and *vide* Union Territory of Ladakh Reorganisation (Adaptation of Central Laws) Order, 2020, Notification No. S.O. 3774(E), dated (23-10-2020).
3. 11th June, 2010, *vide* notification No. S.O. 1416(E), dated 9th June, 2010, *see* Gazette of India, Extraordinary, Part II, sec. 3(*ii*).
4. Ins. by Act 21 of 2017, s. 3 (w.e.f. 3-10-2017).

(*f*) "sampling" means a statistical procedure by which information relating to a particular field of inquiry is derived by applying statistical techniques to information obtained in respect of a proportion of the total number of persons or units concerned relevant to the field of inquiry;

(*g*) "statistical survey" means a census or a survey, whereby information is collected from all the informants in the field of inquiry or from a sample thereof, by an appropriate Government under this Act or any other relevant Act, wholly or primarily for the purposes of processing and summarising by appropriate statistical procedures;

(*h*) "statistics" means statistics derived by collecting, classifying and using statistics, specially in or for large quantities or numbers by appropriate Government from statistical surveys, administrative and registration records, and other forms and papers, the statistical analysis of which are, whether in a published or unpublished form;

(*i*) "statistics officer" means any officer appointed under section 4 for the purposes of any direction issued under section 3 of this Act.

CHAPTER II

COLLECTION OF STATISTICS

3. Collection of statistics.—The appropriate Government may, by notification in the Official Gazette, direct that the statistics on economic, demographic, social, scientific and environmental aspects shall be collected through a statistical survey or otherwise, and thereupon the provisions of this Act shall apply in relation to those statistics:

Provided that–

(*a*) nothing contained in this section shall be deemed to authorise a State Government or Union territory Administration or any local government to issue any direction with respect to the collection of statistics relating to any matter falling under any of the entries specified in List I (Union List) in the Seventh Schedule to the Constitution; or

(*b*) where the Central Government has issued any direction under this section for the collection of statistics relating to any matter, no State Government or Union territory Administration or any local government shall, except with the previous approval of the Central Government, issue any similar direction for so long as the collection of such statistics by the Central Government remain to be completed; or

(*c*) where a State Government or Union territory Administration or any local government has issued a direction under this section for the collection of statistics relating to any matter, the Central Government shall not issue any similar direction for so long as the collection of such statistics by the State Government remain to be completed, except in cases where such statistics have to be collected with reference to two or more States or Union territories.

[1][**3A. Nodal officer**.—(*1*) The Central Government or a State Government or Union territory Administration shall designate one of its officers as a nodal officer for the purposes of statistics under this Act.

(*2*) The nodal officer shall coordinate and supervise such statistical activities in the Central Government or the State Government or Union territory Administration, as the case may be, in which he is designated, and shall exercise such other powers and perform such other duties, as may be prescribed.]

4. Powers of appropriate Government to appoint statistics officer, etc.—(*1*) The appropriate Government may appoint or cause to appoint an officer to be the statistics officer for any geographical unit for the purpose of collecting any statistics directed by it.

1. Ins. by Act 21 of 2017, s. 4 (w.e.f. 3-10-2017).

(*2*) The appropriate Government may appoint any agency or persons working in such agencies to take, or aid in, or supervise the collection of the statistics within any specified geographical unit and such agencies or persons, when so appointed, shall be bound to serve accordingly.

(*3*) The appropriate Government may employ on contract basis any agency or company or organisation or association or person, on such terms and conditions and on such safeguards as may be prescribed, for the purpose of collecting the statistics directed by it.

(*4*) The appropriate Government may delegate to any statistics officer, as it thinks fit, the power of appointing agencies or persons working in such agencies or employing on contract basis any agency or company or organisation or association of persons, conferred on it by sub-sections (*2*) and (*3*) within the geographical unit for which such statistics officer is appointed.

(*5*) The appropriate Government may, by order specify the form, the particulars required or the interval within which, and the statistics officer to whom, the statistical information by the informants shall be furnished.

(*6*) The appropriate Government may, by order published in the Official Gazette, delegate to any statistics officer, as it thinks fit, any power conferred under sub-section (*5*) for the purpose of the collection of statistics under a direction issued by it under section 3.

5. Power of statistics officer to call for information.—The statistics officer may, for the purpose of collection of statistics on any specified subject in any geographical unit for which the said officer was appointed—

(*a*) serve or cause to be served on any informant a notice in writing asking him to furnish the information specified under sub-section (*5*) of section 4 or cause a information schedule to be given to any informant for the purpose of its being filled up; or

(*b*) cause all questions relating to the subject to be asked from any informant; or

(*c*) seek information through tele fax or telephone or e-mail or in any other electronic mode or in a combination of different modes for different sets of information so specified.

6. Duty of informants.—The informants who are asked to furnish any information under the provisions of this Act shall be bound to furnish the information so asked in the prescribed manner to the best of knowledge or belief; and in cases where only a portion of a particular class or group of persons or units is asked to furnish information because of any sampling procedure, it shall not be a defence in failure on the part of any informant to furnish that information, if so asked.

7. All agencies to assist.—Every agency shall render such help and assistance and furnish such information to the statistics officer or a person or an agency authorised by him in writing, as he may require for the discharge of his functions, and shall make available for inspection and examination of such records, plans and other documents, as may be necessary.

8. Right of access to records or documents.—The statistics officer or any person authorised by him in writing in this behalf shall, for the purposes of collection of any statistics under this Act, have access to any relevant record or document in the possession of any informant required to furnish any information under this Act, and may enter at any reasonable time any premises where he believes such record or document is kept and may inspect or take copies of relevant records or documents or ask any question necessary for obtaining any information required to be furnished under this Act.

CHAPTER III

DISCLOSURE OF INFORMATION IN CERTAIN CASES AND RESTRICTIONS OF THEIR USE

9. Security of information.—[1][(*1*) The statistics officer or any person or agencies authorised under this Act shall, for statistical purposes, use any information furnished under section 6 in such manner as may be prescribed.].

1. Subs. by Act 21 of 2017, s. 5, for sub-section (*1*) (w.e.f. 3-10-2017).

(*2*) No person other than a person engaged in the work of collection of statistics under this Act or preparation of statistics resultant to such collection shall be permitted to see any information schedule or any answer to a question asked, except for the purposes of a [1][penalty] under this Act.

(*3*) No information contained in any information schedule and no answer to any question asked shall, except for the purposes of a [1][penalty] under this Act, be separately published, or disclosed without suppressing the identification of informants to any agency.

(*4*) All statistical information published by any agency shall be arranged in such a manner so as to prevent any particulars becoming identifiable by any person (other than the informant by whom those particulars were supplied) as the particulars relating to the informant who supplied it, even through the process of elimination, unless—

(*a*) that informant has consented to their publication in that manner; or

(*b*) their publication in that manner could not reasonably have been foreseen by the concerned agency or any employee thereof.

(*5*) For the purposes of sub-section (*4*), the Central Government may make such rules or make such arrangement, as it may consider necessary.

10. Appropriate Government authorised to disclose certain information.—Notwithstanding the provisions contained in section 9 of this Act, the appropriate Government may disclose the following information, namely:—

(*a*) information supplied by informant in respect of which disclosure is consented to in writing by the informant or by any person authorised by the said informant;

(*b*) information otherwise available to the public under any Act or as a public document;

(*c*) information in the form of an index or list of the names and addresses of informants together with the classification, if any, allotted to them and the number of persons engaged.

11. Disclosure of information schedules for *bona fide* research or statistical purposes.—(*1*) Notwithstanding the provisions contained in section 9 of this Act, the appropriate Government may disclose individual returns or formats or information schedules to other agency or person or institutions or universities solely for *bona fide* research or statistical purposes pursuant to their functions and duties.

(*2*) No individual return or information schedule shall be disclosed pursuant to this section unless–

(*a*) the name and address of the informant by whom the schedule or related information was supplied is deleted;

(*b*) every agency or person or institutions or Universities involved in the research or statistical project makes a declaration to use the schedules disclosed to them only for *bona fide* research or statistical purposes; and

(*c*) the appropriate Government, making such disclosure is satisfied that the security of the schedules and any information contained therein shall not be impaired.

(*3*) The published results of any research or statistical project shall not divulge any more information than what the agency authorised for collection of statistics could publish under this Act.

(*4*) Every agency or person or institutions or universities to whom any individual return or information schedule is disclosed under this section shall comply with directions given by the agency authorised for collection of statistics making the disclosure relating to the schedules and any information contained therein.

12. Disclosure of historical documents.—Notwithstanding anything contained in section 9 of this Act, the appropriate Government may release such documents relating to information schedules, which in its opinion have attained historical importance.

1. Subs. by Act 18 of 2023, s. 2 and Schedule for "prosecution" (w.e.f. 10-12-2024).

13. Security of recorded information.—The statistics officer or any person or agency authorised for collection of statistics shall, while copying or recording any statistical information collected pursuant to this Act from individual returns, information schedules, worksheets or any other confidential source by means of cards, tapes, discs, film or any other method, whether using encoded or plain language symbols for processing, storage or reproduction of particulars, take and cause to take such steps as are necessary to ensure that the security provisions of this Act are complied with.

14. Restrictions on use of information.—Save as otherwise provided under this Act,—

(*a*) no information obtained pursuant to this Act and no copy of the information in the possession of any informant shall be disclosed or used as evidence in any proceedings whatsoever; and

(*b*) no person who has access to any information because of his official position in the collection of any statistics shall be compelled in any proceedings whatsoever to give oral testimony regarding the information or to produce any schedule, document, or record with respect to any information obtained in the course of administering this Act,

except in the manner provided under this Act.

[1][CHAPTER IV

PENALTIES AND ADJUDICATION

15. Penalty for neglect or refusal to supply particulars and other contraventions.—(*1*) Whoever fails to produce any books of account, vouchers, documents or other business records or whoever neglects or refuses to fill in and supply the particulars required in any information schedule or return given or sent to him or whoever neglects or refuses to answer any question or inquiry addressed to him as may be required under or for the purposes of any provision of this Act or whoever acts in contravention or fails to comply with any provision of this Act or any rules made thereunder or any requirement imposed under this Act, shall be liable to penalty which may extend to one thousand rupees, and in the case of a company, with a penalty which may extend to one lakh rupees.

(*2*) The imposition of penalty on a person or company shall not relieve him or it of the obligations under sub-section (*1*), and if after the expiry of fourteen days from the date of imposition of penalty, he or it still fails to give the required particulars or continues to neglect or refuse or contravene any provision of this Act or any rules made thereunder or any requirement imposed under this Act, shall be liable to a further penalty which may extend to one thousand rupees, and in the case of a company, to a further penalty which may extend to five thousand rupees, for each day after the first during which the neglect, refusal or contravention continues.

15A. Adjudicating officer.—(*1*) The appropriate Government may, for the purposes of determining the penalties under section 15, appoint an officer as it may deem fit, to be adjudicating officer to hold an inquiry and impose penalty in the manner, as may be prescribed:

Provided that the appropriate Government may appoint as many adjudicating officers as may be required.

(*2*) The adjudicating officer may summon and enforce the attendance of any person acquainted with the facts and circumstances of the case to give evidence or to produce any document, which in the opinion of the adjudicating officer, may be useful for, or relevant to, the subject-matter of the inquiry and if, on such inquiry, he is satisfied that the person concerned has failed to comply with the provisions of this Act, he may impose penalty:

Provided that no such penalty shall be imposed without giving the parties concerned a reasonable opportunity of being heard.

15B. Appeal.—(*1*) Whoever aggrieved by the order passed by the adjudicating officer under this Act, may prefer an appeal to the appellate authority, above the rank of the adjudicating officer,

1. Subs. by Act 18 of 2023, s. 2 and Schedule for CHAPTER IV (w.e.f. 10-12-2024).

authorised by the appropriate Government, within thirty days from the date of receipt of order in such form and manner as may be prescribed.

(*2*) An appeal may be admitted after the expiry of the period of thirty days if the appellant satisfies the appellate authority that he had sufficient cause for not preferring the appeal within that period.

(*3*) The appellate authority may, after giving the parties to the appeal an opportunity of being heard, pass such order as he may think fit.

(*4*) The appellate authority referred to in sub-section (*1*) shall dispose of the appeal within sixty days from the date of filing the appeal.

15C. Recovery.—Notwithstanding anything contained in this Act, if penalty imposed under this Act, is not deposited, the amount shall be recovered as an arrear of land revenue.]

CHAPTER V

POWER IN RESPECT OF CORE STATISTICS

27. Power in respect of core statistics.—Without prejudice to the provisions contained in this Act, the Central Government may, by notification in the Official Gazette, declare from time to time any subject for the collection of statistics of national importance as 'core statistics' and make such arrangement, as it may consider necessary, for regulating the collection and dissemination of statistics on the subject so declared.

CHAPTER VI

MISCELLANEOUS

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28. Power to give directions.—The Central Government may give directions to any State Government or Union territory Administration or to any local government that is to say Panchayats or Municipalities, as to the carrying into execution of this Act in the State or Union territory or Panchayats or Municipalities, as the case may be.

29. Public servants.—Any statistics officer and any person authorised for the collection of statistics or preparation of official statistics under the provisions of this Act shall be deemed to be a public servant within the meaning of section 21 of the Indian Penal Code (45 of 1860).

30. Bar of jurisdiction.—No civil court shall have jurisdiction to entertain any suit or proceeding in respect of any matter which the appropriate Government or the statistics officer or the agency is empowered by or under this Act to determine, and no injunction shall be granted by any court or other authority in respect of any action taken or to be taken in pursuance of any power conferred by or under this Act.

31. Protection of action taken in good faith.—No suit or other legal proceedings shall lie against the appropriate Government or agency or any statistics officer or other officers or employees in respect of anything which is in good faith done or intended to be done in pursuance of this Act or the rules or directions issued thereunder.

32. Overriding effect.—The provisions of this Act shall have effect notwithstanding anything inconsistent therewith contained in any other law for the time being in force except in relation to the conduct of human population census as per the directions, if any, issued under the Census Act, 1948 (37 of 1948).

33. Power to make rules.—(*1*) The Central Government may, [1][subject to the condition of previous publication] by notification in the Official Gazette, make rules for carrying out the provisions of this Act.

(*2*) In particular, and without prejudice to the generality of the foregoing power, the Central Government may make rules under this section for all or any of the following matters, namely:—

1. Ins. by Act 21 of 2017, s. 6 (w.e.f. 3-10-2017).

(*a*) principles for coordinating as effectively as possible to achieve the objectives of section 3 including nomination and registration of statistics officers by the Central Government and also to avoid unnecessary duplication in the collection of statistics;

[1][(*aa*) the coordination and supervision of statistical activities by the nodal officer and the powers and duties of the nodal officer under sub-section (*2*) of section 3A;]

(*b*) the terms, conditions and safeguards under which any person or agency or company or organisation or association may be engaged by the appropriate Government for the purpose of collection of statistics under sub-section (*3*) of section 4;

(*c*) principles for prescribing the form and manner in which the information may be required to be furnished;

(*d*) principles for prescribing the manner in which the right of access to documents and the right of entry conferred by section 8 may be exercised;

[1][(*da*) the manner of use of information under sub-section (*1*) of section 9;] and

[1][(*db*) the manner of holding inquiry and imposing penalty under sub-section (*1*) of section 15A;

(*dc*) the form and manner of preferring appeal under sub-section (*1*) of section 15B;]

(*e*) any other matter which is to be or may be prescribed under this Act.

(*3*) Every rule made by the Central Government under this Act shall be laid, as soon as may be after it is made, before each House of Parliament, while it is in session, for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.

34. Repeal and savings.—(*1*) The Collection of Statistics Act, 1953 (32 of 1953) is hereby repealed.

(*2*) Notwithstanding such repeal, anything done or any action taken under the said Act shall be deemed to have been done or taken under the corresponding provisions of this Act.

(*3*) All rules made under the said Act shall continue to be in force and operate till new rules are made under this Act.

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1. Ins. by Act 18 of 2023, s. 2 and Schedule (w.e.f. 10-12-2024).